activities in ordinary, open federal courts, a curious thing happened. The government didn't defend itself on the ground that the surveillance activities were legal or constitutional. It declared, instead, that the ACLU and its clients had no right to be in court at all, because the ACLU could not prove that its clients had in fact been surveilled. Moreover, the ACLU could not use the litigation to seek evidence of surveillance, because the existence (or nonexistence) of that evidence was "a state secret," and leaks to journalists didn't count. In other words, the court couldn't recognize the information that was publicly known from having been published in the media; it could only recognize the information that the government officially confirmed as being publicly known. This invocation of classification meant that neither the ACLU, nor anyone else, could ever establish standing to raise a legal challenge in open court. To my disgust, in February 2013 the US Supreme Court decided 5 to 4 to accept the government's reasoning and dismissed an ACLU and Amnesty International lawsuit challenging mass surveillance without even considering the legality of the NSA's activities.

Finally, there was the executive branch, the primary cause of this constitutional breach. The president's office, through the Justice Department, had committed the original sin of secretly issuing directives that authorized mass surveillance in the wake of 9/11. Executive overreach has only continued in the decades since, with administrations of both parties seeking to act unilaterally and establish policy directives that circumvent law—policy directives that cannot be challenged, since their classification keeps them from being publicly known.

The constitutional system only functions as a whole if and when each of its three branches works as intended. When all three don't just fail, but fail deliberately and with coordination, the result is a culture of impunity. I realized that I was crazy to have imagined that the Supreme Court, or Congress, or President Obama, seeking to distance his administration from President George W. Bush's, would ever hold the IC legally responsible—for anything. It was time to face the fact that the IC believed themselves above the law, and given how broken the process was, they were right. The IC had come to understand the rules of our system better than the people who had created it, and they used that knowledge to their advantage.

They'd hacked the Constitution.

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AMERICA WAS BORN from an act of treason. The Declaration of Independence was